

OPINION BY M. EUGÈNE DREYFUS.

[*Translation.*]

However strange be the form in which the Court has felt bound to express a purely provisional opinion on the interpretation, as between Switzerland and France, of Article 435, paragraph 2, and its annexes, of the Treaty of Versailles, its interpretation is clear: these provisions have not abrogated the old stipulations which created the free zones; they had not even for their object such abrogation, and that in spite of all the facts prior to the Treaty of Versailles which the Court declares to be relevant, but without any influence on its present interpretation under the Special Agreement.

I very much regret my inability to agree with the reasons in the order which establish that interpretation, in the first place because they involve an addition to the terms of the Special Agreement, and secondly because Article 435, paragraph 2, and annexes, becomes, as between Switzerland and France, a provision void of meaning, a dead letter.

In Judgment No. 9 (page 12), the Court had laid down a very true principle the application of which by all tribunals is to be recommended, namely, that when the terms of a special agreement have a clear meaning permitting the judge to understand exactly the mission with which he has been entrusted by the Parties, it is by the terms of that Special Agreement that he should be guided in his decision, and not by the conclusions which may have been put forward by the Parties. The Special Agreement which brought the present suit before the Court is expressed in terms that leave no room for doubt: as between France and Switzerland, has Article 435, paragraph 2, of the Treaty of Versailles, with its annexes, abrogated here and now the provisions establishing the free zones? or, if it has not immediately abrogated, has it for its object their abrogation? These last words in themselves imply no idea of obligation or compulsion; they contemplate simply a future abrogation such as France and Switzerland might decide on in time to come. When the framers of the Treaty of Versailles provided in Article 435, paragraph 2, that

the stipulations concerning the free zones were no longer consistent with present conditions and that a status established by agreement between the two countries should be substituted therefor in these territories, had they for their object the abrogation of these stipulations, i.e. to bring about their abrogation in the future by the Parties concerned? That is the only and quite limited question put by the Special Agreement; its purpose is not in any way to secure a decision whether possibly abrogation might be realized by agreement between the two countries, nor yet whether Switzerland would possibly be bound to consent thereto; neither the words "by agreement" nor the word "necessarily" are found in the Special Agreement, and the very simple literal and grammatical interpretation which I adopt seems in every respect preferable to that which the Court has admitted, and which the Swiss Government had set forth in its conclusions with a prolixity which shows that the meaning of the Special Agreement (nevertheless perfectly clear) has been thereby strangely transformed.

The question which in my opinion should predominate in the whole discussion was whether Switzerland had a right to the maintenance of the free zones, and what was the nature of that right as regards each zone; this question was, however, only examined as a secondary consideration by the Court. It is beyond dispute that Switzerland was not a Party to the Treaty of Versailles, and that if it be admitted that she had in the past a contractual right, that diplomatic instrument could not deprive her of such right without her consent. As regards the Sardinian zone, Switzerland certainly draws her right from Article 3 of the Treaty of Turin of March 16th, 1816, signed by her with Sardinia, whose obligations must now be assumed by France; Switzerland must therefore, in principle, continue to enjoy that right in spite of Article 435, paragraph 2, of the Treaty of Versailles, but subject to any possible application of the clause *rebus sic stantibus*. The order of Court has justly recognized the relevance in the matter of such facts prior to the Treaty of Versailles as the establishment of the Federal customs in 1849, and it may therefore be regretted that the Court has not at the present moment expressly had before it the question whether these new facts are such that the change in conditions unilaterally proclaimed

by Article 435, paragraph 2, of the Treaty of Versailles, must necessarily involve, as between France and Switzerland, the nullity of the provisions which more than a century ago set up the Sardinian and Saint-Gingolph zones. But this point is wholly reserved, and I merely note that at the moment it is admitted even in the Court's opinion that the facts put forward by France are in this respect relevant.

As regards the zone of the District of Gex, Switzerland cannot rely on any right under a treaty. The fact "that the French Government has consented to withdraw its customs line from the frontiers of Switzerland in the direction of the Jura" is mentioned for the first time, but purely incidentally, in the Protocol of November 3rd, 1815, signed by the plenipotentiaries of Austria, Great Britain, Prussia and Russia and annexed to the Declaration signed at Paris on November 20th, 1815. Article 3 of the Treaties of Paris signed on November 20th, 1815, by France with Austria, Great Britain, Prussia and Russia, afterwards determined the exact limits within which the customs line should be withdrawn.... This forms the birth certificate of the Gex zone; it runs as follows: "The French customs line shall be placed west of the Jura in such a way that the whole of the District of Gex shall lie outside this line."

It is important to note that neither in the Protocol of November 3rd, nor, above all, in Article 3 of the Treaties of November 20th, 1815, is Switzerland mentioned; although she did adhere by a formal act to the Declaration of Vienna of March 20th, 1815, by which the Powers signatory of the Treaty of Paris recognized and guaranteed her perpetual neutrality, Switzerland adhered neither to the Protocol of November 3rd nor the Declaration of November 20th, 1815, to which the Protocol was annexed. These instruments are quite distinct from the Declaration of March 20th, 1815, which had a quite different purpose, and accession to the latter cannot involve accession to the former. Nor did Switzerland sign the Treaties of November 20th, 1815, which fixed the limit of withdrawal of the customs, nor did she adhere or accede to their provisions: it was Pictet-de Rochemont, her envoy, who obtained for her the privilege of a withdrawal of the customs line by France, but Switzerland

took part neither in the Protocol of November 3rd, 1815, which lays down the principle, nor in the treaties which carry it out: she therefore acquired from France no contractual right. The advantage of a free zone was granted to her by Austria, Great Britain, Russia, Prussia and later Portugal (identical treaty with France dated August 28th, 1817) by a stipulation in her favour; now these same Powers in Article 435, paragraph 2, of the Treaty of Versailles declare that the stipulations of the treaties of 1815 and of the other supplementary acts concerning the free zone of the District of Gex are no longer consistent with present conditions and that a régime to be established by agreement between France and Switzerland shall be put in their place. They therefore undid in 1919 what they had done in 1815, and they consequently authorized France to re-establish her customs line at her political frontier.

Switzerland disputes this and, in the absence of a direct contractual right such as she has never claimed in regard to the Gex zone, she claims that the Powers signatory to the Treaties of Paris at least made a stipulation on her behalf and thus gave her a veritable right which they cannot deprive her of without her consent.

The theory of the stipulation *in favorem tertii*, which the Court declared to be effective in the present case, without, however, expressing an opinion as to its admissibility in international public law, is well known in private law; but its forms vary infinitely in different municipal legislations, and whereas for instance Article 112 of the Swiss Federal Code on Contracts proclaims the entire validity of stipulations on behalf of a third Party, Article 1121 of the French Civil Code only admits these in two cases: when they form a condition of a stipulation made on one's own behalf or of a gift made to another.

In view of this diversity in the nature and legal effects of the stipulation *in favorem tertii* in municipal law, there can be no question of transferring it as such into international public law, nor in particular of giving it such an unlimited field of application as in the present case. It therefore seems certain that it cannot be laid down as a general rule that a State which stipulates on behalf of another State, guarantees

the latter, not being a Party to the treaty in which the stipulation appears, an individual and irrevocable right, the execution of which it might personally demand, even if the State stipulating declared that it freed the debtor State from the obligation imposed upon it in favour of the third State. Such is the predominant view of authorities at the present date, and it is summed up as follows by Professor Anzilotti, President of the Permanent Court of International Justice, in his Course of International Law, French edition, 1929, vol. I, page 424:

"Whereas the law of a State may lay down that where a stipulation has been made *in favorem tertii*, that third Party immediately acquires the right to demand its fulfilment or acquires that right by a simple act of its own will, the very structure of the international legal system shows that in the absence of a special rule in derogation of general principles, a right of the third State to demand the execution of stipulations favourable to it can only arise in virtue of an agreement between the contracting Parties on the one side and the third State on the other."

Thus, the stipulation *in favorem tertii* is contrary to the usual structure of the international legal system. How then can it be given legal effect?

The same ideas have prevailed in international practice; it is enough for me to quote Article 380 of the Treaty of Versailles, which certainly did not intend to confer any irrevocable right on the States for which it opened access to the Kiel canal. It is admitted that as regards the withdrawal of the French customs line, Switzerland signed no agreement either with the Allied Powers or with France in 1815; whereas the Declaration of November 20th, 1815, in its last paragraph, invited all the Powers of Europe to accede to its provisions, and in fact numerous States did so accede, Switzerland alone neither adhered nor acceded in any form whatever to it, without doubt because she considered that she could not draw any right from that treaty. She merely profited by it and cannot now, a century later, claim that these diplomatic instruments in which her name is not even mentioned conferred upon her any right. The Treaty of November 20th, 1815, imposed on France a duty to do something: to place her customs line west of the Jura in such a way that the whole

District of Gex lies outside that line. From that obligation to do something, which was carried out by the French State, there may have resulted for Switzerland certain advantages; but the only obligation entered into by France in 1815 was towards the Allied Powers. From the moment that those Powers, in 1919, having again met together, declared that they freed France from her obligation, the latter cannot exist *in æternum* merely because some advantages accrued to Switzerland, a third State, from its execution. Still less can this be the case when, in freeing France from her obligation, the Allied Powers took account of the special interests of Switzerland or rather of Geneva, since they recommended the two countries to give to the zones territories a special status, which France, moreover, has declared herself ready to grant.

In these circumstances and as regards the Gex zone, Article 435, paragraph 2, of the Treaty of Versailles certainly put an end to the former situation, which was based on no right in favour of Switzerland. Nor must it be said that, in the terms in which it is expressed, this clause was devoid of all abrogatory effect. When the French Government in 1919, without in any way being obliged to do so, spontaneously communicated to M. Gustave Ador the draft which became paragraph 2 of Article 435 of the Treaty of Versailles, the Federal Council itself replied, in its note of May 5th, 1919, that it made express reservations precisely because it did not wish that "its acceptance of the above wording should lead to the conclusion that it would agree to the suppression of a system intended to give neighbouring territory the benefit of a special régime which is appropriate to the geographical and economic situation, and which has been well tested". From this declaration by the Federal Government it follows that the intention of the provision which has textually become Article 435, paragraph 2, certainly had for effect the suppression, here and now, of the free zones. It may be submitted that this interpretation was supported by oral conversations at the moment, and it seems really impossible ten years afterwards to maintain that this clause had no abrogatory significance, even if this contention were based on the different wording of the two paragraphs of Article 435. It must not be

forgotten that if the first paragraph expressly abrogates the provisions relating to the neutral zone, this is solely because it merely constitutes a recognition of an agreement already arrived at; the word "also" in paragraph 2 further shows that the declaration of changed conditions should have the same meaning in the two paragraphs and should equally involve the abrogation of the provisions distinctly referred to therein.

It is for these reasons that I am led to conclude that, as between France and Switzerland, Article 435, paragraph 2, and its annexes, have abrogated the provisions of the Protocol of the Conferences of Paris of November 3rd, 1815, and of the Treaties of Paris of November 20th, 1815, which created the Gex zone. As regards the zones of Upper Savoy and Saint-Gingolph, subject to a subsequent decision by the Court to the effect that the facts declared relevant by it in the affair permit the application here of the rule *rebus sic stantibus*, I consider that the same clause had for its object their abrogation. If it had not at least had this object, the clause would mean nothing, for it is not sufficient to say that, in signing it, the Allied Powers, who had formerly imposed on France the humiliation of placing her customs line within her political frontier, could solely have wished to declare that henceforth they ceased to interest themselves in the matter and that they now authorized France and Switzerland to settle it as they thought fit. Sardinia before 1860 and France afterwards had no need of a declaration of disinterestedness by the Powers signatories to the treaties of 1815 to modify the régime of the free zones in concluding with Switzerland the Conventions of June 8th, 1856, June 30th, 1864, June 14th, 1881, and October 20th, 1906. When the signatory Powers, in Article 435, paragraph 2, framed what is claimed to be a declaration of mere disinterestedness in regard to the question of the free zones as between France and Switzerland, they did not intend to make a platonic and theoretical declaration; this declaration had, in their intention, an object and must produce a practical effect. When these Powers solemnly declared that the stipulations concerning these free zones were no longer consistent with present conditions, they did not merely wish to declare—what was obvious and had

already been done in the past—that Switzerland and France might henceforth settle the status of these territories as they thought fit ; in so far as their declaration inscribed in paragraph 2 of Article 435 did not *ipso jure* abrogate the free zones because it ran counter to a right which might be put forward as against France, it at least meant that abrogation in the future appeared necessary and that it was extremely desirable that the two countries should, if possible, succeed in bringing it about.

(Signed) EUGÈNE DREYFUS.
